

Superior Court of the State of California, County of Orange

TENTATIVE RULINGS FOR DEPARTMENT C16

HON. JUDGE CARMEN R. LUEGE

Date: June 26th, 2026

Posted: June 25th, 2:30 PM

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Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4:30 p.m. on Thursday. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5216. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appeareances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

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#	Case Name	Tentative
49	Vega vs. Oliva 26-01540072	Motion to Strike Portions of Complaint Defendant Rynnerth Conrado Pineda Oliva’s motion to strike the punitive damages allegations and prayer from Plaintiff Zuli Vega’s First Amended Complaint is DENIED. A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. (Code Civ. Proc., § 436.) Punitive damages are governed by Civil Code section 3294: “In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code § 3294(a).) To state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in section 3294. (<i>Coll. Hosp., Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 721.) “Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (<i>Id.</i> at 725.) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).) Fraud is defined as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294, subd. (c)(3).) In <i>Potter v. Firestone Tire & Rubber Co.</i> (1993) 6 Cal.4th 965, 1004, the California Supreme Court explained that “punitive damages sometimes may be assessed in unintentional tort actions.” In <i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 894-895, it noted that “something more than the mere commission of a tort is always required for punitive damages. There must be circumstances of aggravation or outrage, such as spite or malice, or a fraudulent or evil motive on the part of the defendant, or such a conscious and deliberate disregard of the interests of others that his conduct may be called willful or wanton.” Indeed, “punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.” (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210 [internal quotation omitted].) The First Amended Complaint (“FAC”) alleges, in pertinent part, as follows: This action arises from an automobile collision in which Defendant allegedly failed to yield to Plaintiff’s vehicle and struck it “with great force.” (FAC ¶¶ 1, 8.) The police report states that Defendant was arrested at the scene for violating Vehicle Code section 23152, subdivision (a), and identifies that violation as the primary collision factor. (FAC ¶¶ 17-18, 26-27.) The report also states that the collision occurred at approximately 1:10 a.m. and that Defendant fled the scene. (FAC ¶ 28.) The FAC further alleges that this conduct was despicable and that

		Defendant acted with malice, oppression, and knowing disregard for safety. (FAC ¶¶ 29-34.) These allegations are sufficient at this pleading stage to indicate a “conscious disregard of probable injury to others”. (<i>Dawes v. Superior Court</i> (1980) 111 Cal.App.3d 82, 90.) The allegations in this complaint go beyond just driving under the influence. The FAC alleges intoxicated driving, a collision, injury, flight from the scene, and abandonment of Plaintiff. Defendant shall file an answer to the FAC within 15 days after service of notice of ruling. Plaintiff to give notice.
50	Bayarsaikhan vs. Headlands Residential Series Owner Trust, Series E 25-01464240	Motion to Consolidate Plaintiffs Bayarmanlai Bayarksaikhan and Khulan Buyanbat’s motion to consolidate two matters is DENIED. Preliminarily, Plaintiffs fail to comply with the procedural requirements set forth in Rules of Court, Rule 3.350, subd. (a)(1)(A)-(C). The Notice of Motion is deficient as it does not list all named parties in each case, the names of those who have appeared, or the names of their respective attorneys of record. (See Rules of Court, Rule 3.350, subd. (a)(1)(A).) The Notice also fails to contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first. (See Rules of Court, Rule 3.350, subd. (a)(1)(B).) Further, the Notice does not appear to have been filed in the UD action. (See Rules of Court, Rule 3.350, subd. (a)(1)(C).) Moving forward on the merits, when there are actions involving common questions of law or fact pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc. § 1048(a).) The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures); and to avoid the substantial danger of inconsistent adjudications (i.e., different results because tried before different juries, or a judge and jury, etc.). There are two types of consolidation, a complete consolidation which results in a single action and a consolidation of separate actions for trial. (<i>Sanchez v. Superior Court</i> (1988) 203 Cal.App.3d 1391, 1396.) As relevant here, when cases are consolidated completely, which is usually ordered where the parties are identical and the causes could have been joined, the pleadings are considered merged, one set of findings is made, and one judgment is rendered. (Id.) Plaintiffs contend that consolidation of this matter with the UD matter is proper because the cases involve common issues of law and fact, relying on <i>Martin-Bragg v. Moore</i> (2013) 219 Cal.App.4th 367. The trial court has the power to consolidate an unlawful detainer proceeding with a simultaneously pending action in which title to the property is in issue, as a successful claim of title by the tenant would defeat the landlord's right to possession. (<i>Martin-Bragg v. Moore</i> (2013) 219 Cal.App.4th 367, 385.) Where a <u>UD action</u> and a <u>title action</u> are both pending, the trial court in which the unlimited action is pending may stay the UD action until the issue of title is resolved in the unlimited action, or it

		may consolidate the actions. (Ibid.) But a complex title issue should not be left to be tried in the UD case, as defects in the UD plaintiff's title are not properly raised in a summary proceeding for possession, nor concluded by the judgment. (Ibid.) Instead, when complex issues of title are involved, the parties' constitutional rights to due process in the litigation of those issues cannot be subordinated to the summary procedures of unlawful detainer. (Id. at 391.) Trial courts need not necessarily grant every application for consolidation of a UD proceeding with a pending quiet title action, no matter how straightforward the issues or the circumstances: it may instead sever and separately try the issue of title to the property, while assuring the availability of fair compensation to the plaintiff for any delay in acquiring possession under Code of Civ. Proc. § 1170.5(c) [court may order defendant to pay contract rent into court during delay of trial for defendant's benefit].) (Id. at 393.) But here, this instant unlimited civil matter does not involve a claim for quiet title. Instead, the operative SAC alleges the following causes of action: (1) violation of civil code § 2924.17, (2) fraudulent misrepresentation, (3) tortious interference with contractual relations; (4) slander of title; and (5) intentional infliction of emotional distress. Other than the first cause of action for violation of statutory compliance, the remaining four causes of action sound in tort, i.e. fraudulent misrepresentation, tortious interference with contractual relations; slander of title; and intentional infliction of emotional distress. There is no cause of action for quiet title. The closest cause of action is the fourth cause of action for slander of title. But a cause of action for slander of title is not the same as a quiet title action under California law. These are two separate and distinct causes of action with different elements, purposes, and remedies, and litigants routinely plead them as separate claims in the same complaint. A quiet title action is a statutory proceeding brought to establish title against adverse claims to real or personal property or any interest therein. (See Code of Civ. Proc. § 760.020.) Its purpose is to resolve competing claims to ownership or possessory rights in property and to judicially confirm the plaintiff's title. Slander of title, by contrast, is a <i>tort</i> action for redress of an invasion of a particular property right. The main thrust of the cause of action is protection from injury to the salability of property (<i>Howard v. Schaniel</i> (1980) 113 Cal.App.3d 256, 264.) The cause of action is grounded in the law of injurious falsehood, not in the establishment of ownership. (See <i>Truck Ins. Exchange v. Bennett</i> (1997) 53 Cal.App.4th 75, 84.) The elements for slander of title include: “(1) a publication, (2) without privilege or justification, (3) falsity, and (4) direct pecuniary loss.” (<i>Sumner Hill Homeowners’ Assn., Inc. v. Rio Mesa Holdings, LLC</i> (2012) 205 Cal.App.4th 999, 1030.) Moreover, malice — express or implied — is an essential element that is embedded in the second element of a cause of action for damages for slander of title. (<i>Howard v. Schaniel</i>, <i>supra</i>, 113 Cal.App.3d at 263-264.) A quiet title action, by contrast, requires no showing of a false publication, malice, or pecuniary loss. It is simply a proceeding commenced by filing a complaint to establish title against adverse claims (See, Code of Civ. Proc. §760.020.) The remedies available under each action further distinguish them. In a slander
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		of title action, the elements of damage are the loss caused by impairment of vendibility and the cost of clearing the title, including attorney fees and litigation expenses reasonably necessary to remove the doubt cast upon the plaintiff's property rights (<i>Davis v. Wood</i> (1943) 61 Cal.App.2d 788, <i>Sumner Hill Homeowners' Assn., Inc. v. Rio Mesa Holdings, LLC</i> (2012) 205 Cal.App.4th 999.) A quiet title action, by contrast, seeks a judicial declaration of ownership or interest in property — it does not provide monetary damages for the tortious conduct of a defendant. As pointed out by Intervenor Mai Ta (the plaintiff in the UD action against Bayarksaikhan and Buyanbat), the only defense presented in the UD case is as to title, and title is not at issue in the operative SAC of the unlimited civil matter. Title of the Subject Property is held by Mai Ta, who purchased the Subject Property at a foreclosure sale. Other than the first cause of action for violation of statutory compliance, the other causes of action sound in tort, i.e. fraudulent misrepresentation, tortious interference with contractual relations; slander of title; and intentional infliction of emotional distress. These causes of action having nothing to do with quieting title. Thus, there are no common questions of law. There are also no common questions of fact. The instant action seeks monetary damages for wrongful foreclosure against various defendants and involve facts that culminated in the foreclosure sale. Intervenor Mai Ta purchased the Subject Property in the foreclosure sale. As far as the Court has been made aware, Mai Ta has no connection to any of the pre-foreclosure proceedings. The UD action is premised on Mai Ta's ownership interest in the Subject Property. Mai Ta is the current owner of the Subject Property and Bayarksaikhan and Buyanbat have refused to vacate the premises, which gives rise to the UD action. Accordingly, these cases do not involve common questions of law or fact and consolidating these cases would <u>expand</u> the issues for trial and would reduce trial court efficiency rather than enhancing it, which is contrary to the purpose of consolidation. Mai Ta also argues prejudice in being tied to this wrongful foreclosure case for years, whereas the UD action is a summary procedure. The reply asserts that all prejudice will be mitigated because Bayarksaikhan and Buyanbat have offered to pay "reasonable use and occupancy" of the Subject Property during the pendency of the litigation. But it should be up to Mai Ta, the owner of the property, to dictate how they choose to exercise their property rights. Plaintiffs further argue that if the matters are not consolidated and the UD action is not stayed, and Plaintiffs are evicted, they will suffer irreparable harm because they will be displaced of their primary residence based on a foreclosure they have alleged was unlawful. But again, the relief sought in the SAC does not seek to void the sale, nor do they seek the return of their ownership rights to the home. Instead, Plaintiffs seek monetary relief for the permanent loss of title to the Subject Property. So, while Plaintiffs contend ownership interests are too complicated to adjudicate in the UD action, their ownership interests will not be adjudicated in this unlimited civil matter. Even if Plaintiffs were to ultimately prevail on every cause of action asserted in the SAC, the end result would be monetary damages, not the return of title and Plaintiffs' remaining in the Subject Property. Based upon the foregoing, the Court finds that consolidation of the two matter is not appropriate and DENIES the motion to consolidate.
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51	Matthews vs. Global Auto Trend, Inc. 22-01252051	Motion to Enforce Settlement The Motion to Enforce Settlement brought by Defendant Pacific City Bank is DENIED. Under section 664.6, “[i]f parties to pending litigation stipulate, in writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. (Civ. Proc. Code, § 664.6, subd. (a).) There is no dispute that a valid and enforceable written Settlement Agreement was entered into, between the parties. (See ¶4 of An Declaration; See also Opposition: 5:14-15 [“Ms. Matthews’ position has always been that the settlement agreement is valid and enforceable.”]) Noting that Plaintiff previously sought to enforce the Settlement Agreement, Defendant argues that Plaintiff cannot “selectively disavow it as to PCB” (Motion: 6:4-6); however, Plaintiff makes no such attempt. Instead, Plaintiff disputes whether, under the terms of the agreement, Defendant is entitled to judgment. Defendant seeks a determination “that Plaintiff’s claims against PCB were released under the Settlement Agreement” (Motion: 1:10-11); however, per the plain language of the Settlement Agreement, release was contingent upon receipt of “all of the consideration set forth in this Agreement.” (¶4 of An Declaration and Exhibit 1 thereto, at §7.) It undisputed that “Global Auto breached the Settlement Agreement by failing to make the required payments to both Plaintiff and PCB.” (Motion: 3:5-6; See also ¶6 of Declaration of An Declaration and ¶11 of Matthews Declaration.) In light of the above, the order sought by Defendant is not “pursuant to the terms of the settlement,” as required. “[T]he power of the trial court under Code of Civil Procedure section 664.6...is extremely limited. [¶]...The court is powerless to impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement.” (<i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 790.) “[T]he trial court is under a duty to render a judgment that is in exact conformity with an agreement or stipulation of the parties...It is not the province of the court to add to the provisions thereof [citations]; to insert a term not found therein [citations]; or to make a new stipulation for the parties.” (<i>Id.</i> at p. 792.) Similarly, in considering approval of a settlement under Code of Civil Procedure section 664.6, a court cannot “add to or modify an express term of the settlement.” (<i>Leeman v. Adams Extract & Spice, LLC</i> (2015) 236 Cal.App.4th 1367, 1375.) Here, entering judgment in favor of Defendant based on a finding Plaintiff’s claims were released would essentially rewrite the terms of the Settlement Agreement, to remove the condition precedent of payment. Defendant acknowledges the above, within its Reply: “PCB acknowledges that as a matter of contract interpretation, the release was contingent upon payment and that Global’s nonperformance prevented the release from becoming operative.” (Reply: 2:15-17.)
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		Instead, Defendant asserts Plaintiff's claims are barred by the defenses of judicial and/or equitable estoppel. (See Motion: 6:15-9:12.) However, these arguments extend well beyond Code of Civil Procedure section 664.6, under which judicial power is "extremely limited" to entering judgment "pursuant to the terms of the settlement." (<i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 790; See also Code Civ. Proc., § 664.6, subd. (a).) Defendant cites no authority which supports granting relief pursuant to Code of Civil Procedure section 664.6, based on estoppel principles.
54	Vasquez vs. NGL Logistics, LLC 26-01557902	Motion for Leave to Intervene StarStone National Insurance Company's unopposed motion for leave to file a complaint-in-intervention is GRANTED. An employer who has paid workers' compensation benefits to an employee injured on the job has the right to intervene in the employee's lawsuit against the person causing such injury. (Lab. Code, § 3852.) If the employer is insured against liability for compensation with any insurer, such insurer is subrogated to the rights of the employer and may enforce any such subrogated rights in its own name. (Ins. Code, § 11662.) Thus, an employer's workers' compensation carrier also has the right to intervene. (See <i>Bailey v. Reliance Ins. Co.</i> (2000) 79 Cal.App.4th 449, 454 ["various provisions of the Labor Code seek to ensure that the employer (defined to include the insurance carrier under Lab. Code, § 3850) will be reimbursed for amounts paid to the injured employee which the employee has also recovered from a third party tortfeasor"].) If an action is brought by the employer or employee, the other may, at any time before trial on the facts, join as party plaintiff. (Lab. Code, § 3853.) Starstone National Insurance Company has a direct pecuniary interest in this action because it paid workers' compensation benefits to or on behalf of Plaintiff and seeks reimbursement through subrogation. (Declaration of Matthew Soleimanpour, ¶ 2.) Accordingly, it has a statutory right to intervene and a direct financial interest in this litigation. The motion is timely, as Labor Code section 3853 expressly permits intervention at any time prior to trial, and there is no indication of prejudice to the existing parties. Accordingly, the motion is granted. Starstone National Insurance Company shall electronically file its proposed complaint-in-intervention (Soleimanpour Decl., Ex. A) within 10 days of service of notice of this ruling and shall comply with Code of Civil Procedure section 387, subdivision (e), in serving the complaint-in-intervention. Moving party shall give notice of the ruling.

56	Stoddard vs. Kia Motors America, Inc. 20-01159610	Motion for Attorney Fees, Motion to Strike or Tax Costs, & Motion to Strike or Tax Costs NO TENTATIVE RULING – Parties to appear on Zoom or in-person.
57	Monteiro vs. BMW of North America, LLC 24-01439792	Motion for Summary Judgment and/or Adjudication Defendant BMW of North America, LLC (“BMW”)’s motion for summary judgment against Plaintiff Briana Monteiro is GRANTED for the reasons set forth below. <u>Evidentiary Objection</u> Plaintiff’s evidentiary objection to Grube Declaration ¶ 8 is OVERRULED. <u>General Legal Authority</u> Under Code of Civil Procedure section 437c(c), a summary judgment motion shall be granted if all the papers submitted show there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. A defendant meets its burden on summary judgment by showing that the plaintiff cannot prove its causes of action, or by establishing a complete defense to the plaintiff’s causes of action. (Code Civ. Proc., 437c(p)(2).) If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.) If the defendant meets this initial burden, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of material fact. (Code Civ. Proc., § 437c(p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851.) The nonmoving party must present substantial evidence in order to avoid summary judgment. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) “In some instances . . . , ‘evidence may be so lacking in probative value that it fails to raise any triable issue.’” (<i>Whitmire v. Ingersoll-Rand Co.</i> (2010) 184 Cal.App.4th 1078, 1083-1084, quoting <i>Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.</i> (1988) 199 Cal.App.3d 791, 795.) “‘If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.’” (<i>Saelzler v. Advanced Group 400</i> (2001) 25 Cal.4th 763, 780, quoting <i>Leslie G. v. Perry & Associates</i> (1996) 43 Cal.App.4th 472, 482.) In ruling on a motion for summary judgment, “the court must ‘consider all of the evidence’ and ‘all’ of the ‘inferences’ reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party.” (<i>Aguilar v. Atlantic Richfield Co.</i> , <i>supra</i> , 25 Cal.4th at p. 843, citations omitted.) Courts “‘construe the moving party’s affidavits strictly, construe the opponent’s affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.’” (<i>Unilab Corp. v. Angeles-IPA</i> (2016) 244 Cal.App.4th 622, 636, quoting <i>Seo v. All–Makes Overhead Doors</i> (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for

		summary judgment, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.) “The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact.” (<i>Johnson v. United Cerebral Palsy, etc.</i> (2009) 173 Cal.App.4th 740, 754, citation omitted.) “[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . .” (<i>Rosas v. BASF Corp.</i> (2015) 236 Cal.App.4th 1378, 1392.) <u>Allegations in the Complaint</u> The court first reviews the complaint because the pleadings define the issues addressed in a summary judgment motion. (<i>Scott Co. v. United States Fidelity & Guaranty Ins. Co.</i> (2003) 107 Cal.App.4th 197, 213 disapproved of on other grounds in <i>Le Francois v. Goel</i> (2005) 35 Cal.4th 1094, 1101.) Plaintiff’s complaint for violation of the Song-Beverly Consumer Warranty Act alleges, in pertinent part, as follows: Plaintiff purchased a 2019 BMW 330i Sedan from Irvine BMW on January 4, 2020. (Compl., ¶ 4.) BMW issued express warranties covering the vehicle’s utility and performance. (Compl., ¶¶ 9-10.) The vehicle suffered from repeated defects, including transmission malfunctions, inability or delay in shifting gears, rough or jerking shifts, RPM surging, engine shaking during operation, and Automatic Start/Stop system defects. (Compl., ¶ 11.) Plaintiff presented the vehicle to BMW or its authorized repair facilities at least eight times, but the vehicle was returned without the defects being properly repaired. (Compl., ¶¶ 11-12.) BMW failed to repair the vehicle within a reasonable number of attempts and failed to replace the vehicle or provide restitution. (Compl., ¶¶ 13, 17.) <u>BMW’s Motion for Summary Judgment</u> BMW moves for summary judgment on the ground that Plaintiff’s Song-Beverly cause of action is barred because Plaintiff purchased the Subject Vehicle used, and a used vehicle does not qualify as a “new motor vehicle” under the Song-Beverly Consumer Warranty Act. The Song-Beverly Act (the “Act”) is a remedial statute designed to protect consumers who have purchased products covered by an express warranty. (<i>Robertson v. Fleetwood Travel Trailers of California, Inc.</i> (2006) 144 Cal.App.4th 785, 798.) The Act “provides enhanced remedies to consumers who buy new consumer goods accompanied by a manufacturer’s express warranty (§ 1793.2.) ... The same protections generally apply to the sale of used goods accompanied by an expressed warranty, except that the distributor or retail seller is bound, as opposed to the manufacturer” (<i>Kiluk v. Mercedes-Benz USA, LLC</i> (2019) 43 Cal.App.5th 334, 336 [footnote omitted].) Section 1793.2 of the Song-Beverly Act is titled “Consumer good manufacturers; express warranties; service and repair facilities.” (Civ. Code, § 1793.2.) Subsection (b) requires a manufacturer to “service[] or repair[] goods” in conformance with “the applicable warranties within 30 days.” (Id. at 1793.2, subd. (b).) Subdivision (a)(3) requires “manufacturer[s] of consumer goods ... for which the manufacture has made an express warranty” to “[m]ake available to authorized service and repair facilities sufficient service literature and
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		replacement parts to effect repairs during the express warranty period.” (Id. at § 1793.2, subd. (a)(3).) Civil Code section 1793.2, subdivision (e)(2) defines “ ‘new motor vehicle’ ” to include “a new vehicle ‘bought or used primarily for personal purposes’ as well as ‘a dealer-owned vehicle and a “demonstrator” or other motor vehicle sold with a manufacturer’s new car warranty.’ ” (<i>Rodriguez v. FCA US LLC</i> (2024) 17 Cal.5th 189, 195 (“<i>Rodriguez</i>”).) The Act defines the parties who issue warranties as follows. A manufacturer is an entity “that manufactures, assembles, or produces consumer goods.” (Civ. Code, § 1791, subd. (j).) In <i>Rodriguez</i>, the California Supreme Court clarified that a vehicle purchased with only the remaining balance of an unexpired manufacturer’s warranty does not qualify as a vehicle “sold with a manufacturer’s new car warranty” unless the warranty was issued at the time of that sale. (<i>Rodriguez, supra</i>, 17 Cal.5th at p. 196.) Accordingly, the Act’s protections for “new motor vehicles” do not apply where no new manufacturer’s warranty accompanies the sale. (<i>Id.</i> at pp. 195–196.) <u>BMW submits the following evidence:</u> On January 4, 2020, Plaintiff Briana Monteiro (“Plaintiff”) purchased a used 2019 BMW 330i from Irvine BMW. (DSS No. 1; Ex. A, Motor Vehicle Retail Installment Contract, Bates BMW000700–BMW000706, produced May 6, 2025, verification provided May 7, 2025.) At the time of purchase, the subject vehicle had 9,972 miles on the odometer. (DSS No. 2; Ex. A [Motor Vehicle Retail Installment Contract, Bates BMW000700–BMW000706, produced May 6, 2025, verification provided May 7, 2025].) The subject vehicle was sold as a used vehicle and was not sold as a BMW Certified Pre-Owned vehicle. (DSS No. 3; Ex. A [Motor Vehicle Retail Installment Contract, Bates BMW000700–BMW000706, produced May 6, 2025, verification provided May 7, 2025]; Ex. D [Declaration of Chris Grube (“Grube Decl.”), ¶¶ 7–15].) The subject vehicle’s original in-service date was April 16, 2019, when the 4-year/50,000-mile New Vehicle Limited Warranty commenced. (DSS No. 4; Ex. B [2019 BMW Warranty Booklet, Bates BMW000640–BMW000699, produced May 6, 2025, verification provided May 7, 2025].) When Plaintiff purchased the subject vehicle, she received only the remaining balance of the original 4-year/50,000-mile New Vehicle Limited Warranty. (DSS No. 5; Ex. B [2019 BMW Warranty Booklet, Bates BMW000640–BMW000699, produced May 6, 2025, verification provided May 7, 2025]; Ex. D [Grube Decl., ¶ 12].) BMW did not issue any new warranty when the subject vehicle was sold to Plaintiff on January 4, 2020. (DSS No. 6; Ex. D [Grube Decl., ¶¶ 12–13].) BMW and Irvine BMW are separate entities. (DSS No. 7; Ex. D [Grube Decl., ¶ 11].)
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		Any alleged certification of the subject vehicle by Irvine BMW did not require BMW to provide any additional warranty and did not extend any BMW warranty coverage. (DSS No. 8; Ex. D [Grube Decl., ¶¶ 7–16].) The only warranty provided by BMW in connection with the subject vehicle was the remaining balance of the original 4-year/50,000-mile New Vehicle Limited Warranty, whichever occurred first. (DSS No. 9; Ex. B [2019 BMW Warranty Booklet, Bates BMW000640–BMW000699, produced May 6, 2025, verification provided May 7, 2025]; Ex. D [Grube Decl., ¶¶ 7–16].) On November 13, 2024, Plaintiff filed this action alleging a single cause of action for violation of the Song-Beverly Consumer Warranty Act based on breach of express warranty. (DSS No. 10; Ex. C [Complaint].) BMW is the only named defendant in this action, and Irvine BMW is not named as a defendant. (DSS No. 11; Ex. C, [Complaint].) BMW’s evidence shows Plaintiff’s purchase did not include a manufacturer’s new car warranty issued at the time of sale. Under <i>Rodriguez</i>, this is dispositive. Because the subject vehicle was not “sold with a manufacturer’s new car warranty,” Plaintiff cannot invoke the Act’s remedies applicable to new motor vehicles against BMW. (<i>Rodriguez</i>, at p. 200.) Plaintiff, in opposition, argues <i>Rodriguez</i> does not bar her Song-Beverly claim because the subject vehicle qualifies as a “new motor vehicle” under Civil Code section 1793.22, subdivision (e)(2), as Plaintiff was the first consumer/registered owner and the vehicle had not previously been sold to a private consumer. Plaintiff submits a copy of the Carfax Report, which identifies the subject vehicle as a one-owner vehicle. (Opposition, Hollins Decl., ¶ 3, Ex. A.) However, even if Plaintiff was the first retail owner, the relevant inquiry is whether the manufacturer’s new car warranty was issued with Plaintiff’s sale. (<i>Rodriguez, supra</i>, 17 Cal.5th at pp. 196, 200.) The Supreme Court explained that dealer-owned vehicles and demonstrators qualify as “new motor vehicles” because, upon sale to the first retail buyer, the manufacturer or its representative treats the vehicle as new by issuing a manufacturer’s new car warranty with that transaction. (<i>Id.</i> at pp. 198-200.) Thus, Plaintiff’s status as the first consumer purchaser or first registered owner is not, by itself, dispositive under <i>Rodriguez</i>. Plaintiff does not submit evidence raising a triable issue as to whether BMW issued a new manufacturer’s warranty when she purchased the subject vehicle. Although Plaintiff contends the vehicle was dealer-owned or had not previously been sold to a private consumer, that evidence does not show BMW issued a new warranty, reinstated or extended the warranty, or that a new manufacturer’s warranty otherwise arose from Plaintiff’s transaction. Because Plaintiff received only the remaining balance of the original BMW warranty, and because BMW did not issue a new or additional warranty with Plaintiff’s purchase, the subject vehicle does not qualify as a “new motor vehicle” under Civil Code section 1793.22, subdivision (e)(2). Since Plaintiff failed to raise a triable issue of material fact, BMW is entitled to summary judgment. BMW to give notice.
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